

IN THE HIGH COURT AT CALCUTTA

Rohan Shah vs Om Joshi & Ors. ... on 1 December, 2024
(2024) 7 ALD 115, AIR 2025 SC 963
Bench: Sanjay Karol, J. and A.S. Oka, J.

JUDGMENT

Sanjay Karol, J.

1. This appeal arises out of a civil suit for Specific Performance of an Agreement to Sell registered under the Indian Registration Act, 1908. The plaintiff/appellant seeks execution of sale deed and permanent injunction under Order 39 Rule 1 and 2 of the Code of Civil Procedure, 1908 (CPC) in respect of property situated in Pune.
2. The respondent/vendor contended that time was of the essence and the appellant failed to tender the balance consideration of Rs. 1.8 Crores within the stipulated 90 days, invoking forfeiture under Section 74 of the Indian Contract Act, 1872.
3. Mr. Andhyarujina, learned Senior Counsel for the appellant, argued that in contracts relating to immovable property time is not ordinarily of the essence, and demonstrated continuous readiness and willingness under Section 16(c) of the Specific Relief Act, 1963.
4. Counsel relied upon (1997) 3 SCC 1 in the case of K.S. Vidyanadam v. Vairavan, and upon (1993) 1 SCC 519 in the case of Chand Rani v. Kamal Rani, holding readiness and willingness must be gathered from contemporaneous conduct.
5. Having examined the bank statements and escrow deposits, this Court holds the appellant satisfied the test of readiness and willingness under Section 16(c) of the Specific Relief Act, 1963.
6. The appeal is allowed in part; specific performance is decreed subject to deposit of balance sale consideration within twelve weeks.

A.S. Oka, J. - I agree.